SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 01/14/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).) This rule and the time deadline is strictly enforced.

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-
https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09

ID: 161 950 4895
Password: 812674

Courtroom Clerk's Session

1. 8:59 AM CASE NUMBER: C24-03229
CASE NAME: ANTONE DUNCAN VS. MARCUS STERN
***CASE MANAGEMENT CONFERENCE TRAIL MOTION SCHEDULED SAME DAY**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference ("CMC") trails the hearing on the discovery motion, Line 11. If the tentative ruling for Line 11 is uncontested, then this CMC will be continued to May 14, 2026 at 8:30 in Dept. 16.

2. 9:00 AM CASE NUMBER: C25-02151
CASE NAME: JUSTIN MIDYETT VS. PACIFIC GAS AND ELECTRIC COMPANY
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>
This Case Management Conference ("CMC") trails the hearing on the motion, Line 11. If the tentative ruling for Line 14 is uncontested, then this CMC will be continued to May 14, 2026 at 8:30 in Dept. 16.

3. 9:00 AM CASE NUMBER: C24-01127
CASE NAME: DANA VENEY VS. ADAM BROOKS, MD
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>
The Case Management Conference is vacated and **<u>continued</u>** to trail the hearing on the Motion for Summary Judgment calendared for April 22, 2026 at 9:00 a.m. in Dept. 16. No appearance is necessary.

4. 9:00 AM CASE NUMBER: C25-00133
CASE NAME: KRISTINA BROWN VS. CITY OF RICHMOND
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>
The Case Management Conference was scheduled to trail the hearing on a demurrer. The demurrer hearing is off calendar and this CMC is vacated and **<u>continued</u>** to May 14, 2026 at 8:30 a.m. in Dept. 16. No appearance is necessary.

Law & Motion

5. 9:00 AM CASE NUMBER: C24-00892
CASE NAME: LAXMI CAPITAL, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. MARGARET MURPHY
***HEARING ON MOTION IN RE: FOR CHARGING ORDER AGAINST DEBTOR MARGARET MARIE MURPHY'S INTEREST IN MJD DEVELOPMENT, LLC - CONTINUED FROM 4/9/25 DUE TO JUDGE'S UNAVAILABILITY. CONTINUED BY STIPULATED AGREEMENT FROM 10/29/25 TO 1/14/25.**
FILED BY: LAXMI CAPITAL, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY
<u>*TENTATIVE RULING:*</u>
The hearing on the motion is **<u>continued</u>** to April 8, 2026 at 9:00 a.m. by stipulation and order.

6. 9:00 AM CASE NUMBER: C24-01290
CASE NAME: DEBRA JENKINS VS. ESTATE OF BRANDON COMPTON
***HEARING ON MINOR'S COMPROMISE RE: DIOR DEBRA JENKINS**
FILED BY: JENKINS, DEBRA
<u>*TENTATIVE RULING:*</u>
The Amended Proposed Order Granting Petition for Minor's Compromise for Minor for Dior Debra filed on September 5, 2025 is **<u>granted</u>**. The Court will execute the proposed Amended Order Approving Minor's Compromise and Amended Proposed Order to Deposit Funds lodged on

September 5, 2025. No appearance is necessary.

7. 9:00 AM CASE NUMBER: C24-01290
CASE NAME: DEBRA JENKINS VS. ESTATE OF BRANDON COMPTON
***HEARING ON MINOR'S COMPROMISE RE: JACHEL ESTELLA NOLEN**
FILED BY: JENKINS, DEBRA
****TENTATIVE RULING:****

The Amended Proposed Order Granting Petition for Minor's Compromise for Minor for Jachel Nolen filed on September 5, 2025 is **granted**. The Court will execute the proposed Amended Order Approving Minor's Compromise and Amended Proposed Order to Deposit Funds lodged on September 5, 2025. No appearance is necessary.

8. 9:00 AM CASE NUMBER: C24-01290
CASE NAME: DEBRA JENKINS VS. ESTATE OF BRANDON COMPTON
***HEARING ON MINOR'S COMPROMISE RE: JACOB KENNETH KALEEK NOLEN**
FILED BY: JENKINS, DEBRA
****TENTATIVE RULING:****

The Amended Proposed Order Granting Petition for Minor's Compromise for Minor for Jacob Kenneth Kaleek Nolen filed on September 5, 2025 is **granted**. The Court will execute the proposed Amended Order Approving Minor's Compromise and Amended Proposed Order to Deposit Funds lodged on September 5, 2025. No appearance is necessary.

9. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT FROM: UNITED STATES FIRE INSURANCE COMPANY
FILED BY: UNITED STATES FIRE INSURANCE COMPANY
****TENTATIVE RULING:****

Summary

This tentative ruling applies to lines 9 and 10. Defendant United States Fire Insurance Company's Motion to Strike the Second Amended Complaint is **granted**. Defendant United States Fire Insurance Company's Demurrer to the Second Amended Complaint is **sustained** without leave to amend.

Background

Plaintiff Dr. Karen Coleman, appearing in *propria persona*, alleges she was attending a Community Baby Shower event on August 27, 2022 at John Buckley Square in Pittsburg when she tripped and fell on a tablecloth and landed on her knee. She alleges the event was organized and operated by Dr. Monique Sims.

However, until recently, the only defendant named in the initial action is U.S. Fire Insurance Company ("Defendant" or "U.S. Fire"), which provided an insurance policy for the event with Dr. Monique Sims as insured. Plaintiff's first amended complaint ("FAC") alleges four causes of action, three causes of action labeled as "general negligence" and one cause of action for premises liability. The Court sustained Defendant's demurrer to the complaint with leave to amended on August 6, 2025.

On August 15, 2025, Plaintiff filed a Second Amended Complaint against U.S. Fire, naming other

Defendants including Crum & Forster, Sports Recreation Providers Purchasing Group, Zain Jeewanjee Insurance Agency, Monique Sims, the City of Pittsburg and Does 1-50, alleging the following causes of action: (1) Negligence, (2) Negligence Supervision [sic] / Undertaking, (3) Negligence Claim Handling, (4) Breach of Contract and (5) Breach of Covenant. To date, only Defendant Jeewanjee has made an appearance in this case and has filed his own demurrer, which is calendared for hearing on March 25, 2026 at 9:00 a.m. in this Department.

On September 19, 2025, Defendant United States Fire Insurance Company ("Defendant" or "US Fire") filed a Motion to Strike Plaintiff Karen Coleman's ("Plaintiff") Second Amended Complaint and a Demurrer to Plaintiff's Second Amended Complaint. The hearing date for both motions was noticed for January 14, 2026 in Department 16. Defendant served another Notice of Hearing on September 30, 2025 to Plaintiff confirming the hearing date for both motions was schedule for January 14, 2026.

Defendant's Demurrer and Motion to Stike were supported by Notice, Memorandum of Points and Authorities and the Declaration of Counsel Farid Zakaria. The demurrers to each cause of action are stated on the grounds that each of the five causes of action fail to state a cause of action pursuant to Cal. Code of Civ. Proc. § 430.40(e) and that each cause of action is uncertain pursuant to Cal. Code of Civ. Proc. § 430.10(f). Defendant's Motion to Strike is premised on Cal. Code of Civ. Proc. §§ 435 and 436 on the grounds that the Second Amended Complaint was not authorized by this Court. The declaration of Defendant's Counsel, Farid Zakaria, demonstrates compliance with his duty to meet and confer with Plaintiff. Ultimately, Defendant claims that Plaintiff cannot support each of her causes of action because Plaintiff did not initiate litigation against the insured, Dr. Monique Sims.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days… before the hearing." Nine court days before the hearing is December 31, 2025. Plaintiff did not file a timely opposition to U.S. Fire's Demurrer and Motion to strike by December 31, 2025. The Court acknowledges that Plaintiff filed an *ex parte* application for an order <u>continuing</u> the hearing of these two matters on January 9, 2026. The Court has not granted this *ex parte* application and the application was lodged after an opposition was due.

<u>Analyses</u>

<u>Self-Represented Litigant</u>

The Court is aware that Plaintiff is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also R*appleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assura*nce (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants. Indeed, Plaintiff demonstrates a level of sophistication in the manner in which she has filed pleadings and pursued relief on her own behalf since this case was initiated on August 20, 2024.

Failure to File a Timely Opposition

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S*. (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc*. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose both the Motion to Strike and the Demurrer is a deemed to be her consent to the granting of both motions.

Ruling

Defendant United States Fire Insurance Company's Motion to Strike is **granted**. Defendant United States Fire Insurance Company's Demurrer to Plaintiff's Seconded Amended Complaint is **sustained** without leave to amend. The Court will execute the two proposed orders lodged by Defendant U.S. Fire on September 19, 2025.

10. 9:00 AM CASE NUMBER: C24-02203
CASE NAME: KAREN COLEMAN VS. UNITED STATES FIRE INSURANCE COMPANY
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT**
FILED BY: UNITED STATES FIRE INSURANCE COMPANY
****TENTATIVE RULING:****
See Line 9.

11. 9:00 AM CASE NUMBER: C24-03229
CASE NAME: ANTONE DUNCAN VS. MARCUS STERN
***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH 1ST AMENDED NOTICE OF DEPOSITION**
FILED BY: DUNCAN, ANTONE
****TENTATIVE RULING:****

Summary

Plaintiffs Antone Duncan, Terrance Duncan, and Angela Duncan's ("Plaintiffs") Motion to Compel Compliance with First Amended Notice of Deposition and for Monetary Sanctions against Defendant Budget Truck Rental, LLC("Budget") is **granted** in the manner set forth below.

Background

This action arises from a motor vehicle accident. Plaintiffs allege that on August 23, 2023, Defendant Marcus Stern was operating a full-size moving van within the scope of his employment with Defendants Golden Gate Relocation LLC and Golden Gate Relocations LLC when he lost control of the vehicle and collided with Plaintiffs' residence in El Cerrito, California. The moving van was owned, operated, maintained, repaired, and used by Defendant Budget, among others.

On December 2, 2024, Plaintiffs initiated this lawsuit, asserting claims for general negligence and motor vehicle accident against Budget and other defendants. Plaintiffs contend that the collision caused extensive damage to their residential property and personal belongings.

On August 26, 2025, Plaintiffs served a Notice of Deposition of Persons Most Knowledgeable from Budget regarding insurance coverage. The Notice also sought the production of Documents Nos. 1-20 pertaining to insurance maintained by Budget that may provide coverage for the incident. The Notice scheduled a date for the deposition and requested alternative dates. Budget served blanket objections to the Notice but failed to provide alternative dates for the appearance of a witness or the production of documents. Following the parties' meet and confer obligations, Budget continued to refuse to comply with Plaintiffs' request to schedule the deposition. To date, no deposition has taken place, and Budget has failed to make a witness available. However, Budget produced certain documents after the filing of this motion that may be responsive to Plaintiffs' discovery requests.

On October 9, 2026, Plaintiffs filed the instant Motion to Compel Compliance with First Amended Notice of Deposition and for Monetary Sanctions. The Motion is supported by a Notice, Memorandum of Points and Authorities, Separate Statement, and Declaration of Counsel Susan Kang Gordon. The Motion seeks an order compelling Budget to produce witnesses most knowledgeable to testify regarding insurance coverage and requests the production of documents Nos. 1-20 no later than five days prior to the deposition. Plaintiffs assert that Budget failed to appear and produce the requested documents without valid objection pursuant to Code of Civil Procedure § 2025.450(a). Plaintiffs further seek sanctions in the amount of $5,915 in attorney's fees incurred in bringing this Motion.

On September 29, 2025, Budget filed an opposition, supported by a Memorandum of Points and Authorities and Declaration of Counsel Gene Stone. The Opposition asserts that Budget served timely and appropriate objections to the documents sought by Plaintiffs. Among these objections, Defense contends that the deposition notice did not allow adequate time to produce witnesses and that the requested documents were duplicative of materials previously produced in response to a Request for Production of Documents.

Notably absent from Defendant's objections is any statement proposing a date for the deposition of the insurance witness. Plaintiffs filed a further response and declaration on January 7, 2026, which the Court has reviewed. Plaintiffs acknowledge that Budget was ultimately required to produce the self-insured policy documents, but note that such production was necessitated by the filing of this motion to compel.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co*., (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Plaintiffs' notice of deposition and the accompanying request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e), (f), (h), and (i), it constitutes a misuse of the discovery process to make, without substantial justification, an unmeritorious objection to discovery; to make an evasive response to discovery; to oppose unsuccessfully without substantial justification a motion to compel or limit discovery; or to fail to meet and confer to resolve discovery disputes informally.

Boilerplate objections fail to satisfy the specificity mandated by statute and may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e), (f), and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220(b), (c).

It is improper for a party to respond to discovery by making unmeritorious objections and subsequently refusing to identify or produce responsive documents. California's Discovery Act was intended to remove the "game" element from trial preparation, predicated on the understanding that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County, supra,* (1961) 56 Cal.2d 355).

The Court finds that Budget's objections constitute blanket objections lacking in merit. The objections fail to include any statement that Budget will produce documents in response to the request. The insurance documents sought from a self-insured litigant are relevant, and the request for their production is neither oppressive nor harassing. Budget's blanket objections are therefore improper.

Furthermore, objections based on unavailability are meritless. Budget is required to meet and confer to provide dates for the production of a witness. Budget cannot evade this obligation by simply objecting that neither counsel nor a witness is available. Budget's actions constitute the type of gamesmanship discouraged by *Greyhound, supra*. Further misconduct may support terminating sanctions.

<u>Attorney-Client and Work Product Privileges</u>

If a responding party seeks to assert the attorney-client privilege or the work product doctrine, it must provide a privilege log specifying in detail each document withheld, the date of the document, the author, and the privilege asserted. (Cal. Code of Civ. Proc. § 2031.240(c)(1).) Applied here, where Defendants object to production and assert the attorney-client privilege or work product privilege, they are required to produce a privilege log. Budget's responses do not identify a privilege log in conjunction with the assertion of a blanket attorney-client or work product privilege. This constitutes a misuse of the discovery process.

Having reviewed the papers submitted by counsel and applied the relevant statutory and decisional authority, the Court finds good cause to make the following findings, rulings, and orders.

<u>Ruling</u>

1. Plaintiffs' Motion to Compel Deposition of Budget's Persons Most Knowledgeable to provide testimony regarding insurance is **<u>granted</u>**. Budget shall produce a person most knowledgeable for deposition within ten (10) days from the date of service of this order. This witness must be made available to Plaintiffs for deposition for at least six (6) hours per day and shall continue on a day to day basis until the deposition is complete.
2. Budget's objections to producing this witness are **<u>overruled</u>**.
3. Plaintiff's Motion to Compel Production of Documents Nos. 1-20, contained in the Notice of Deposition, is **<u>granted</u>**. Budget's blanket objections are overruled. All responsive documents must be produced to Plaintiffs at least five (5) days before the deposition of Budget's insurance witness. Where counsel asserts the attorney-client or work product privilege,

Counsel shall produce a privilege log in compliance with Cal. Code of Civ. Proc. § 2031.240(c)(1).

4. The Court finds that Budget's actions in making meritless objections and in failing to produce a PMK witness after several attempts to meet and confer constitutes misuse of the discovery process pursuant to Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), and (i). Such actions are sanctionable.
5. The Court **grants** Plaintiffs' request for sanctions. Defendant Budget is ordered to pay sanctions in the amount of $4,500 to Plaintiffs, which the court determines to be reasonable attorney's fees, no later than ten (10) days from the date of service of this order.
6. Plaintiffs' Counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling to the order no later than ten (10) days from the date of the hearing of this Motion.
7. The Court orders Counsel to meet and confer to resolve, without further hearing, the discovery disputes that are calendared for discovery motions on April 29, 2026 at 9:00 a.m. in Department 16. This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. The Court informs Counsel that Cal. Bus. & Prof. Code § 6086.7(a)(3) requires this Court to notify the State Bar of "the imposition of any judicial sanctions against an attorney, except sanctions for failure to make discovery or monetary sanctions of less than one thousand dollars ($1,000.)" Cal. Bus. & Prof. Code § 6086.7(b) and Rule No. 10.609 also requires the court to notify the attorney involved that the matter has been referred to the State Bar. The Court interpret these rules liberally to mean that if the Court grants a discovery motion and sanctions and fees exceed $1,000 against an attorney, the Court is required to report counsel to the State Bar. This is consistent with California Rules of Court Rule No. 10-609, Cal. Bus. & Prof. Code § 6086.7 and California Judges Association Formal Ethics Opinion No. 74 the mandatory duty to report the imposition of sanctions to the State Bar, as they exceed $1,000. (*City of Los Angeles v. PWC LLP* (2024) 17 Cal.5th 46, 50). The Court will reserve its authority to appoint a Discovery Referee to hear the motions scheduled for April 29, 2026 if the Parties have not resolved the disputes prior to the hearing of these motions.

12. 9:00 AM CASE NUMBER: C25-00443
CASE NAME: MARIA MARTINEZ VS. SELENE FINANCE LP
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SELENE FINANCE LP
TENTATIVE RULING:

Introduction

Before the Court is Defendant SELENE FINANCE, L.P. ("Selene") and US BANK TRUST NATIONAL ASSOCIATION NOT IN ITS INDIVIDUAL CAPACITY BUT SOLELY AS OWNER TRUSTEE FOR LEGACY MORTGAGE ASSOCIATION ASSET TRUST 2021-GS2 ("USBT")(collectively "Defendants") Demurrer. The Demurrer relates to Plaintiffs Maria Martinez's First Amended Complaint (FAC) for six wrongful foreclosure related cause of actions.

For the following reasons, **the Demurrer is overruled as to the 29223.5 and the wrongful foreclosure claim and sustained as to the remaining claims with leave to amend.**

Meet and Confer Requirement

Defendant satisfied their meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Thomas Van. On April 25, 2025, the Defendant's counsel initially reached out to Plaintiff's counsel and both parties met and conferred by phone on May 2, 2025 and could not come to a resolution about the Demurrer. (Decl. of Van at ¶¶ 3-5.)

Request for Judicial Notice

Defendants SELENE FINANCE, L.P. ("Selene") and US BANK TRUST N.A. request the Court take judicial notice of Exhibits 1 through 3, which are recorded land records. Defendants requests are Evidence Code section 452(h) permits courts to take judicial notice of "[f]acts and Accurate determination by resort to sources of indisputable accuracy." "This includes recorded deeds …or similar document[s]… ." (*Poseidon Dev., Inc. v. Woodland Lane Estates, LLC* (2007) 1522 Cal.App.4th 1106, 1117.) The "court may take judicial notice of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, a court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face." (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal. App. 4th 256, 265.)

Since all Exhibits are supported by proper authority, judicial notice is granted for Exhibits 1-3.

Statement of Facts

Plaintiff took out a mortgage loan on October 26, 2005 with the original lender Bank of America in the amount of $100,000 ("Note"). The Note was secured by a Deed of Trust ("DOT") recorded in the Official Records of Contra Costa County as Instrument Number 2005- 0414554-00 (Note and DOT collectively the "Loan"). (Complaint ¶ 10, Exh. A.)

Plaintiff alleges that the DOT was assigned to Federal National Mortgage Association as memorialized by an Assignment of Deed of Trust recorded on June 21, 2016, in the Official Records of Contra Costa County as Instrument Number 2016-0120446-00. (Complaint ¶ 11a, Exh. D.) The DOT was then assigned to Nationstar Mortgage LLC D/B/A Mr. Cooper as memorialized by a Corporate Assignment of Deed of Trust recorded on October 25, 2019, in the Official Records of Contra Costa County as Instrument Number 2019-0183000-00. (Complaint ¶ 11b, Exh. E.) The DOT was then assigned to Goldman Sachs Mortgage Corp as memorialized by a Corporate Assignment of Deed of Trust recorded on March 17,2021 in the Official Records of Contra Costa County as Instrument Number 2021-0081334. (Complaint ¶ 11c, Exh. F.) The DOT was then assigned to USBT as memorialized by an Assignment of Deed of Trust recorded on January 25, 2023, in the Official Records of Contra Costa County as Instrument Number 2023-0006323. (Complaint ¶ 11d, Exh. G.)

A first Notice of Default was recorded on March 28, 2023, in the Official Records of Contra Costa County as Instrument Number 2023-0028738. (RJN Exh. 1.) Per that notice, Plaintiff was in default in the amount of $8,682.54 as of March 27, 2023. Plaintiff later reinstated the Loan by paying the full amount in default. Accordingly, a Notice of Rescission of Notice of Default was recorded on June 2, 2023, in the Official Records of Contra Costa County as Instrument Number 2023-0052473. (RJN, Exh. 2.)

A second Notice of Default ("NOD") was recorded on August 16, 2024, in the Official Records of Contra Costa County as Instrument Number 2024-0080133. The NOD states that Plaintiff was in default of $7,592 as of August 15, 2024. The August 5, 2024, signed Declaration of Compliance states Defendant Selene used due diligence to contact the borrower pursuant to Civ. Code § 2923.55(f) and more than 30 days had passed thereafter. (Complaint ¶ 12, Exh. B.)

A Notice of Trustee's Sale ("NOTS") was recorded on November 2, 2024, in the Official Records of Contra Costa County as Instrument Number 2024-0126882. The NOTS set the sale date for January 2, 2025.

Plaintiff alleges that she submitted an application for mortgage assistance on or about December 14, 2024. (Complaint ¶¶ 14, 24, 31.) Plaintiff was unable to reinstate the Loan.

A Trustee's Deed Upon Sale ("TDUS") was recorded on March 21, 2025, in the Official Records of Contra Costa County as Instrument Number 2025-0026422. (RJN, Exh. 3.) Pursuant to Civil Code § 2924(m)(a)(1), the Property was purchased by Zhengyu Wang ("Wang"), a Prospective Eligible Owner, and the TDUS includes Wang's Declaration.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

Analysis

2923.5

Section 2923.5, subdivision (a)(1)(A) generally provides that a notice of default may not be recorded until one of two alternatives are met: "[e]ither 30 days after initial contact is made . . . or 30 days after satisfying . . . due diligence requirements . . . ." The notice of default "shall include a declaration that the mortgage servicer has contacted the borrower" or "has tried with due diligence to contact the borrower as required by this section . . . ." (*Id.*, subd. (b).)

Plaintiff in their FAC brings a new allegation that Defendant failed to send any written notifications for any foreclosure alternatives. This allegations goes to the heart of the 2923.5 due diligence requirement which mandates mortgage servicers to attempt to contact a borrower by sending a first-class letter that includes the toll-free telephone number made available by HUD to find a HUD-certified housing counseling agency. (Civ. Code § 2923.5(e)(1(A).)

The Demurrer is overruled as to the first cause of action for Civil Code 2923.5.

2923.6(c) Dual Tracking

Pursuant to Civil Code § 2923.6(c), "If a borrower submits a complete application for a first lien loan modification offered by, or through, the borrower's mortgage servicer, a mortgage servicer, mortgagee, trustee, beneficiary, or authorized agent shall not record a notice of default or notice of sale, or conduct a trustee's sale, while the complete first lien loan modification application is pending. A mortgage servicer, mortgagee, trustee, beneficiary, or authorized agent shall not record a notice of default or notice of sale or conduct a trustee s sale until any of the following occurs:

> (1) The mortgage servicer makes a written determination that the borrower is not eligible for a first lien loan modification, and any appeal period pursuant to subdivision (d) has expired.
>
> (2) The borrower does not accept an offered first lien loan modification within 14 days of the offer.
>
> (3) The borrower accepts a written first lien loan modification, but defaults on, or otherwise breaches the borrower s obligations under, the first lien loan modification."

Plaintiff argues that Defendants violated the statute by failing to provide a written determination to her complete loan modification. (Complaint ¶ 28.)

Defendants point out that the Complaint mentions two loan modifications, one dated 12/14/2024 and one dated 8/14/2024. Plaintiff is unclear as to which modification they are seeking recourse for. This becomes an issue as Defendants point out because Defendants may not be obligated to review dependent on whether the application was submitted for the purpose of delay or of there has been a material change in borrower's financial circumstances. (See Civil Code 2923.6(g).) This point permeates throughout the whole complaint and to each and every cause of action. This was an issue with the original Complaint and Plaintiff has still failed to fix this issue in the FAC. The Court will not grant leave to amend for this issue if it is still present going forward.

The Demurrer is sustained as to the second cause of action for Civil Code 2923.6(c) with leave to amend.

2923.7 Single Point of Contact (SPOC)

When a borrower requests a foreclosure prevention alternative, the mortgage servicer shall promptly establish a single point of contact and provide to the borrower one or more direct means of communication with the single point of contact. (Civil Code 2923.7(a).)

Plaintiff newly alleges Several different representatives would answer the phone and advise the plaintiff or plaintiffs' agents of different information as if they had no real knowledge of the loan account. (FAC ¶ 39.) Plaintiff further alleges that the violation was material since it prevented Plaintiff of a chance for a successful submission of a complete loan modification application. (FAC ¶ 39.) Thus, Plaintiff has adequately plead a SPOC violation.

However, as discussed above, there is a confusion whether there were two loan modification applications in 8/14/2024 and 12/14/2024 or if there is only one application. There must be a valid loan modification application in order to have a SPOC violation.

The Demurrer is sustained as to the third cause of action for Civil Code 2923.7 with leave to amend.

2924.9

Section 2924.9 provides in relevant part:

(a) Unless a borrower has previously exhausted the first lien loan modification process offered by, or through, his or her mortgage servicer described in Section 2923.6, within five business days after recording a notice of default pursuant to Section 2924, a mortgage servicer that offers one or more foreclosure prevention alternatives shall send a written communication to the borrower that includes all of the following information:

> (1) That the borrower may be evaluated for a foreclosure prevention alternative or, if applicable, foreclosure prevention alternatives.
>
> (2) Whether an application is required to be submitted by the borrower in order to be considered for a foreclosure prevention alternative.
>
> (3) The means and process by which a borrower may obtain an application for a foreclosure prevention alternative.

This cause of action is also dependent on which loan modification Plaintiff is referring to in each cause of action (either one dated 12/14/2024 or the one dated 8/14/2024). This becomes an issue as Defendants point out because Defendants may not be obligated to review dependent on whether the application was submitted for the purpose of delay or of there has been a material change in borrower's financial circumstances. (See Civil Code 2923.6(g).)

The Demurrer is sustained as to the fourth cause of action for Civil Code 2924.9 with leave to amend.

2923.6(e)(1)-(2) Loan Modification Application Appeal

Plaintiff's fifth cause of action for violation of Civil Code § 2923.6(e)(1)-(2) ("Section 2923.6(e)") alleges that "Defendants" did not grant Plaintiff "a right to appeal any denial of the RMA, assuming there was a denial which was not received in writing by plaintiff." (Complaint ¶ 44.)

This cause of action is also dependent on which loan modification Plaintiff is referring to in each cause of action (either one dated 12/14/2024 or the one dated 8/14/2024). This becomes an issue as Defendants point out because Defendants may not be obligated to review dependent on whether the application was submitted for the purpose of delay or of there has been a material change in borrower's financial circumstances. (See Civil Code 2923.6(g).)

Business and Professions Code § 17200 et seq.

From the Pleadings, Plaintiffs allegations are all tethered to a to some specific "constitutional, statutory, or regulatory provisions…" (*Scripps Clinic v. Super. Ct*. (2003) 108 Cal. App. 4th 917, 940.) Here, Plaintiff uses their other causes of action to act as pendant claims in which the wrongful conduct requirement can tether or attach to. Since Plaintiff's 29253.5 cause of action has survived Demurrer, this cause of action must be overruled.

Wrongful Foreclosure

The basic elements of a wrongful foreclosure cause of action are that: "(1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) the party attacking the sale . . . was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering." (*Miles v. Deutsche Bank Nat'l Tr. Co*. (2015) 236 Cal. App. 4th 394, 408.)

Courts have applied equitable exceptions to the tender rule, such as: "(1) where the borrower's action attacks the validity of the underlying debt, tender is not required since it would constitute affirmation of the debt; (2) when the person who seeks to set aside the trustee's sale has a counter-claim or set-off against the beneficiary, the tender and the counter-claim offset each other and if the offset is greater than or equal to the amount due, tender is not required; (3) a tender may not be required if it would be 'inequitable' to impose such a condition on the party challenging the sale; … (4) tender is not required where the trustor's attack is based not on principles of equity but on the basis that the trustee's deed is void on its face (such as where the original trustee had been substituted out before the sale occurred)[;] [(5)] when the loan was made in violation of substantive law, or in breach of the loan agreement or an agreement to modify the loan[;] [and (6)] when the borrower is not in default and there is no basis for the foreclosure … ." (*Turner v. Seterus, Inc.* (2018) 27 Cal.App.5th 516, 525-526; quoting 5 Miller & Starr, Cal. Real Estate (4th ed. 2017) § 13:256, pp. 13-1101 to 13-1102, fns. omitted.)

Here, Plaintiff alleges that the Subject Property was wrongfully foreclosed based upon the violations of the CA Homeowner's Bill of Rights, particularly 2923.5. (FAC ¶¶ 71-79.) Thus, the Demurrer is overruled as to this cause of action.

Conclusion

For the reasons analyzed above, **the Demurrer is overruled as to the 29223.5 and the wrongful foreclosure claim and sustained as to the remaining claims with leave to amend.**

13. 9:00 AM CASE NUMBER: C25-00560
CASE NAME: ILHAM ALHAFNAWI VS. CR CONSTRUCTION
HEARING IN RE: MECHANIC'S LIEN
FILED BY:
TENTATIVE RULING:*
Summary:

Plaintiff Ilham Alhafnawi's Petition to Remove Mechanic's Lien and for Slander of Title against Defendant CR Construction is **granted**.

Background

On February 27, 2025, Plaintiff Ilham Alhafnawi ("Plaintiff") brought this Petition to (1) Remove Mechanic's Lien and for (2) Slander of Title against Defendant CR Construction, Inc., a defunct company,("Defendant"). Over the ensuing months, service of process was not accomplished in compliance with the code.

On September 24, 2025, the Court issued an order requiring Plaintiff to provide a declaration evidencing that the Petition and Accompanying Papers and Re-Notice of Hearing showing the hearing date of January 14, 2026, were served on the Secretary of State pursuant to the Court's August 22, 2025 order. After reviewing the Declaration of Counsel Kelsey J. Ibarrola filed on December 17, 2025, the Court finds that Plaintiff Ilham Alhafnawi has complied with this Court's August 22, 2025 order requiring him to accomplish service on the Secretary of State with the re-notice of hearing of this Petition for January 14, 2026.

No timely opposition was received from Defendant. California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S*. (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc*. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose Petition after service is a deemed to be Defendant's consent to the Petition.

Based on the foregoing, the Court finds that there is good cause to grant Plaintiff's Petition.

Ruling

Plaintiff Ilham Alhafnawi's Petition to Remove Mechanic's Lien and for Slander of Title against Defendant CR Construction is **granted**. This Court issues this order pursuant to California Civil Code § 8488 directing the release of the mechanic's lien recorded by Defendant CRC on December 7, 2023, as Instrument No. DOC-2023-0130006, in the official records of Contra Costa County.

14. 9:00 AM CASE NUMBER: C25-02151
CASE NAME: JUSTIN MIDYETT VS. PACIFIC GAS AND ELECTRIC COMPANY
***HEARING ON MOTION IN RE: STRIKE PLTFS COMPLAINT**
FILED BY: PACIFIC GAS AND ELECTRIC COMPANY
****TENTATIVE RULING:****

Before the Court is Defendant Pacific Gas and Electric Company Motion to Strike. Defendant PG&E seeks to strike allegations in the Complaint relating to Plaintiffs' claims for punitive damages. Specifically, PG&E seeks to strike paragraphs 25, 30, 36, and 43 (from the Prayer).

Defendant's Motion is **granted** as outlined below.

Summary of Allegations

Plaintiff commenced working for PG&E as a Traffic Control Flagger on September 11, 2023. On June 15, 2024, he was struck by a vehicle while at work at a PG&E job site in Lafayette, California. He promptly reported his injury to his supervisor. His supervisor told him the injury would be a big problem since he was on probation. He also instructed Plaintiff to obtain a police report regarding the incident.

About a week later, Plaintiff was limping at work. Toward the end of the day a supervisor asked about the police report. Plaintiff said he was having difficulty getting it. The supervisor said he though Plaintiff wasn't going to make an issue about the injury – to which Plaintiff responded he wasn't going to say anything and returned to work.

Plaintiff also alleges that he was told he was being deceitful when he intentionally under reported his work hours. When he returned to work, he was told to wait for an ergonomic specialist and then to call the Emergency Nurse Hotline. When he asked his supervisor what he should say to the nurse, he was "curtly told to tell her how he was feeling." After explaining his injuries, he was put on Workers Compensation and was placed on modified duties.

Plaintiff then claims he was subject to a pattern of retaliation and mistreatment "including being marked as "No Call, No Show" despite being present; being forced to revise incident reports to benefit management; being placed under unreasonable restrictions post-injury; facing false rumors about dishonesty spread throughout his workplace." He told his supervisor that he felt he was being harassed and was told to report it to HR.

On August 20, 2024, Plaintiff awoke with pain in his injured foot, so he texted his supervisor. He did not receive a response. He was terminated that same day. Plaintiff indicated he would pick up his check the next day, but was unable to. As such, his supervisor mailed the check, which Plaintiff received on September 11, 2024.

Based on the above, Plaintiff filed his complaint on July 29, 2025 alleging four causes of action: (1) disability discrimination; (2) retaliation; (3) harassment based on disability; and (4) waiting time penalty for nonpayment of wages. Included in the Complaint is a Prayer for punitive and exemplary damages.

Standard of Review

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. ("CCP") § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 ["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

Analysis

To support punitive damages, the complaint must allege the ultimate facts of the defendant's oppression, fraud or malice. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.) Punitive damages are awardable only where there is clear and convincing evidence of "malice." "'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294.) "'Despicable conduct' is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.)

The mere allegation that an intentional tort was committed is not sufficient to warrant punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) There must also be circumstances of "aggravation or outrage … or a fraudulent or evil motive on the part of the defendant." (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894.) "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves*, 157 Cal.App.3d at 166.) "Punitive damages 'are not a favorite of the law and the granting of them should be done with the greatest caution.'" (*Troensegaard v. Silvercrest Indus.*, (1985) 175 Cal.App.3d 218, 227.)

Additionally, an award of punitive damages against a corporation "must rest on the malice of the corporation's employees." (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) However, the "law does not impute every employee's malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the 'officer[s], director[s], or managing agent[s].'" (*Ibid.* quoting Cal. Civ. Code § 3294, subd. (b).)

The "law does not impute every employee's malice to the corporation." (*Cruz*, supra, 83 Cal.App.4th at 167.) "Instead, the punitive damage statute requires proof of malice among corporate leaders: the 'officer[s], director[s], or managing agent[s].'" (*Ibid.* quoting Cal. Code Civ. Proc. § 3294, subd. (d).) A 'managing agent' is an employee "who 'exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy.*'" *(Ibid.* italics in original.)

'Corporate policy' is "the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations." (*Ibid.*) "A 'managing agent' is one with substantial authority over decisions that set these general principles and rules." (*Id.* at 167-68.)

Plaintiff cites *Colucci v. T-Mobile USA, Inc.* 48 Cal.App.5th 442 to support his claim that the complaint contains enough detail to support his claims. Plaintiff's own outline of *Colucci* establishes the difference. In *Colucci* there was evidence that the corporate employee at issue:

> "was a district manager responsible for managing nine retail stores and 100 employees. Individual store managers reported to him, and he in turn reported to a more senior manager. Robson had independent, final authority to hire or fire employees within his district; indeed, he alone decided to fire Colucci. Further, as in *White*, Robson had substantial discretionary authority over daily store operations, which led to the ad hoc formulation of policy. For example, Robson decided whether and where to transfer employees; whether to institute disciplinary measures; and whether and how to investigate employees' reported concerns. These decisions affected company policy over a significant aspect of T-Mobile's business."

The instant complaint contains several general allegations regarding actions taken by an unnamed 'supervisor' with relation to Plaintiff, including telling him his injury might be a 'big deal' since he was on probation, told Plaintiff he was being deceitful for not accurately reporting his time, telling him "curtly" to tell the emergency nurse how he was feeling, and telling Plaintiff to report his concerns regarding feeling harassed to HR. Nowhere in the complaint are there any factual allegations describing this supervisor's duties or responsibilities. There is no indication that s/he exercised any control over corporate policy. There are no facts showing that s/he had any control over Plaintiff's employment. In other words, none of the key facts outlined in *Colucci* are present in Plaintiff's complaint.

Plaintiff also argues that he is not required to specifically identify the managing agent at the pleading stage, citing *Credit Managers Assn. v. Superior Court* (1978) 51 Cal.App.3d 352 and *Okun v. Superior Court* (1981) 29 Cal.3d 442. (Opp. at C. 2.) Neither of those cases deal with the pleading requirements for a punitive damages claim against a corporate defendant. In fact, neither case deals with punitive damages at all.

Leave to Amend

"Where a defendant has not had an opportunity to amend the complaint in response to a [motion to strike], leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (*Eghtesad v. State Farm General Ins. Co.* (2020) 51 Cal.App.5th 406, 412.) As the complaint does not show on its face it is incapable of amendment, the Court will **grant leave to amend** since this is the first time the Court has addressed the sufficiency of the pleadings.

Conclusion

Defendant's motion to strike is **granted**. Plaintiff is granted leave to amend. Plaintiff shall file any amended complaint within 15 days of entry of order on this motion.

15. 9:00 AM CASE NUMBER: N25-1866
CASE NAME:
***HEARING ON MINOR'S COMPROMISE PETITION TO APPROVE COMPROMISE OF DISPUTED CLAIM OF MINOR FILED ON 9-19-25 BY ELIZABETH ZARATE**
FILED BY:
****TENTATIVE RULING:****
Summary

Petitioner Elizabeth Zarate's Petition for Approval of Compromise of Minor Yarehzy Zarate Solares (DOB 1/25/2008) ("Minor"), filed on September 19, 2025, is **granted**, as set forth below.

Background

On September 19, 2025, Petitioner Elizabeth Zarate's, parent and guardian ad litem for her son, Minor, filed the Petition through assisting counsel Thomas Goodwin., to compromise the claim that Minor had against Elizabeth Zarate Solares and Taylor Robin Bomar related to an accident that occurred on May 21, 2023 in Byron, California. In that accident, Minor sustained to his forehead and loss consciousness. Petitioner represents that Minor has received treatment at John Muir Hospital, including imaging and chiropractic treatment. He has fully recovered and there are no permanent injuries. The Defendants collectively offered settlement in the amount of $15,000, of which $12,500 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of $2,500 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 19, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-01038
CASE NAME: DELVAN KITCHING VS. CARYN CASS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**
FILED BY: KITCHING, DELVAN
****TENTATIVE RULING:****
Summary

The following discovery motion is scheduled to be heard on by the Court on January 14, 2026 at 9:00 a.m. in Department 16:

1. Plaintiff Delvan Kitching's ("Plaintiff's) Motion to Compel Further and Amended Responses to Request for Production of Documents, Set One and for Sanctions from Defendant Cary Cas ("Defendant");

The Court also has scheduled hearings on the following discovery motions in Department 16 on January 21, 2026 at 8 2026 at 9:00 a.m.:

2. Plaintiff's Motion to Compel Further and Amended Responses to Form Interrogatories, Set One and for sanctions against Defendant.
3. Plaintiff's Motion to Compel Plaintiff's Motion to Compel Further and Amended Responses to Request for Admissions, Set One and for Sanctions against Defendant.
4. Plaintiff Motion to Compel Further and Amended Responses Special Interrogatories, Set One, and for Sanctions against Defendant.

The Court **vacates** all four (4) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

In this action, Plaintiff Delvan Kitching seeks relief from Defendant Caryn Cass for the following causes of action: breach of partnership, specific performance, damages based upon breach of express contract, constructive trust, declaratory relief, fraud, intentional and negligent infliction of emotional distress, partition, breach of fiduciary duty, unjust enrichment, conversion, breach of implied covenant of good faith and fair dealing and quantum meruit. These theories relate to real properties located in Richmond and Napa, California.

The Parties are former romantic partners. The Parties are presently involved in an ongoing Domestic Violence Restraining Order trial before the Family Law Division the Court in Case No D23-01814. They are unable to cooperate on most issues, given the intensity of the disputes in their family law litigation.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed Cal CEB) §15.32.C.

Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiff filed its motions.
On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

Here, the Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, requires discovery reference pursuant to Cal. Code of Civ. Proc. Section 639(a)(5), which states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

The Court finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are four (4) pending discovery motions on calendar in the matter, scheduled for January 14, 2026, January 21, 2026. These motions and opposition filed to date consists of over six hundred (600) pages. The Court further finds that, based on the intensity of the disputes, the former romantic relationship between the Parties, and the pending domestic violence restraining order trial involving the Parties, Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

The Court appoints a Discovery Referee. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640.

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on January 14, and January 21, 2026, and any and all subsequently filed discovery motions. The hearing on these discovery motions are **vacated** from Department 16 calendar and are referred for further hearing to the Discovery Referee.

2. By no later than January 23, 2026, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by January 23, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by Tuesday, January 27,, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for January 14 and January 21, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.

6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

17. 9:01 AM CASE NUMBER: C23-00098
CASE NAME: CARL PREWITT VS. TEXACO INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES**
FILED BY: TEXACO INC.
****TENTATIVE RULING:****
Summary

This Tentative Ruling relates to Lines. 17 and 18. The Court **grants** Texaco's Motions in part and **denies** them in part as set forth herein.

Background

This is a personal injury and toxic tort case wherein Plaintiff Carl Prewitt alleges he developed an aplastic anemia blood disorder in September 2019 from his exposure to benzene in chemical products, allegedly including Texaco gasoline. In March 2020, Plaintiffs filed their claims in Philadelphia, and in June 2022 the Philadelphia court dismissed Texaco based on lack of jurisdiction. Seven months later, in January 2023, Plaintiffs refiled their complaint in this court, alleging that the doctrine of equitable tolling justified their delay.

On November 20, 2025 , Defendant Texaco Inc. ("Defendant" or "Texaco") filed two motions:

1. For an Order compelling Plaintiff Deborah Prewitt ("Deborah") to provide further verified written responses to Texaco's Special Interrogatories Sets and 5, Nos. 21, 23-26, 28 and 30, 33-34; and Plaintiff Carl Prewitt ("Carl") to provide further verified responses to Texaco's Special Interrogatories Nos. 42, 44-47, 49 and 51, 54-55 and for a Court admonition to Plaintiffs' *pro hac* vice counsel that they may no longer disregard California statutes and rules of practice
2. For an Order compelling Carl to provide further verified responses to Texaco's Special Interrogatories Nos. 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, and 66 and Request for Production No. 16.

Plaintiffs filed Oppositions to both Motions on December 31, 2025, supported by a Memorandum of Points and Authorities. Plaintiffs failed to produce a counter separate statement pursuant to Cal. Rules of Court Rule No. 3.1345, but incorporates their arguments in their opposition. In the future, Plaintiffs are admonished to comply with the requirements of the Rules of Court regarding the format of discovery motion oppositions. Further failure to comply with the rules may result in the Court striking a non-conforming filing.

Furthermore, some of the arguments raised by Plaintiff's counsel, though somewhat unclear, appear to assert arguments that the discovery sought circumvents expert disclosure and discovery rules pursuant to Cal. Code of Civ. Proc § 2034.260, and appear to be related to claims not asserted in Plaintiff's complaint. Plaintiffs also object to providing further responses that conform to Alabama state law, as the discovery was served prior to the Court's order applying Alabama law to these proceedings.

Texaco filed reply briefs on January 7, 2026, asserting that the discovery sought is relevant under

California Discovery law. Texaco makes further arguments that Plaintiffs make meritless objections and continue to engage in gamesmanship prohibited by the *Greyhound* case.

<u>Analyses</u>

Note: pursuant to the Court's order on October 8, 2025, the laws of the State of Alabama tort law will apply to this case. The original discovery requests at dispute in these motions were propounded under California law prior to the Court's order of October 8, 2025. Discovery laws are procedural. Accordingly, the Court will apply California law relating to the Discovery Act.

<u>Scope of Discovery</u>

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultant*s (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc*., supra, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

<u>Interrogatories</u>

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

<u>Objections and Sanctions</u>

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, 2030.300, *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138. In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c). Here, the record submitted to the Court show that the Parties engaged in meet and confer communications prior to Texaco's filing of these two motions.

After considering the papers submitted by counsel, and applying the applicable statutory and decisional authorities, and good cause appearing, the Court makes the following findings, rulings and orders.

Ruling

The Court makes the following orders on Texaco's Motion to Compel Further Verified Responses to Special Interrogatories Sets and 5, Nos. 21, 23-26, 28 and 30, 33-34 from Deborah:

- No. 21: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further response describing the design defect alleged.
- No. 23-24: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 25-26: **Granted**. Plaintiffs' objections are overruled. Plaintiff fails to state facts that support their claim for design and manufacturing defects. The Court finds that Plaintiff only states contentions and legal theories without facts. Plaintiff shall provide further responses.
- No. 28: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 30: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 33-34: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.

The Court makes the following orders on Texaco's Motion to Compel Further Responses to provide further verified responses to Texaco's Special Interrogatories, Set No. 5, Nos. 42, 44-47, 49 and 51, 54-55 from Carl:

- No. 42: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further response describing the design defect alleged.
- No. 44: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 45: **Granted**. Plaintiffs' objections are overruled. Plaintiff fails to state facts that support

their claim for design and manufacturing defects. The Court finds that Plaintiff only states contentions and legal theories without facts. Plaintiff shall provide further responses.

- No. 47: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further response describing the manufacturing defect alleged.
- No. 49: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 51: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 54-55: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.

The Court makes the following orders on Texaco's Motion to Compel Further Verified Responses to Special Interrogatories, Set 6, Interrogatories Nos. 56, 57, 58, 59, 60, 61, 62, 63, 64, 65, and 66 and Request for Production No. 16. and Requests for Production, Set 3, as follows

- No. 56: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 57: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 58: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 59: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 60: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 61: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 62: **Granted**. Plaintiff's objections are overruled. Plaintiff shall provide further responses.
- No. 63: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 64: **Granted**. Plaintiffs' objections are overruled. Plaintiff shall provide further responses identifying expert witnesses.
- No. 65: **Denied.** This is an improper hypothetical, calls for an expert opinion, and is argumentative. The objections are sustained.
- No. 66: **Denied.** This is an improper hypothetical, calls for an expert opinion, and is argumentative. The objections are sustained.
- Request for POD No. 16: **Denied**. If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control or the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Plaintiff has responded in compliance with the code.

Time for Compliance: Plaintiffs shall provide further verified answers no later than ten (10) days without further objections.

Sanctions: No sanctions are requested. Each party to bear their own attorney's fees & costs.

Texaco's Counsel is ordered to prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling, to the order no later than ten (10) days from the date of the hearing of this Motion.

18. 9:01 AM CASE NUMBER: C23-00098
CASE NAME: CARL PREWITT VS. TEXACO INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES**
FILED BY: TEXACO INC.
****TENTATIVE RULING:****
See Line 17.